

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501589	AMIRIANFAR vs BADDOUR, INDIVIDUALLY AND	MOTION FOR SUMMARY ADJUDICATION

Tentative Ruling:

The hearing on this motion has been continued to September 17, 2026, at 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407078	PATTON vs NISSAN NORTH AMERICA, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR SAVANNAH PATTON AND ALICIA HERNANDEZ

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel Nitin Sapra and the firm Knight Law Group, LLP are relieved as counsel of record for Plaintiffs effective upon the filing of the proof of service of the signed order being served upon the clients.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507434	JOHNSON vs FCA US LLC	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

The hearing on the motion for judgment on the pleadings is continued to allow Moving Defendant, FCA, an opportunity to fully satisfy its obligation to meet and confer and file the appropriate declaration in accordance with CCP §439. Counsel for Defendant, FCA, Kevin Kita, filed a meet and confer declaration stating that on 11/26/25 his office emailed a letter to Plaintiff's counsel outlining FCA's position and requesting availability for a teleconference to discuss the issues, and stating that if Plaintiff's counsel did not respond to the letter an appropriate motion would be filed. (Dec.Kita ¶¶ 4-5, Ex. "B".) Plaintiff did not respond to the letter. (*Id.* ¶ 6.) Mr. Kita declares that this case is one of many matters that Plaintiff's counsel refuses to dismiss or amend. (*Id.* ¶ 7.) However, the meet and confer burden is not on Plaintiff's counsel. Instead, the moving party has the obligation to meet and confer in person or by phone/videoconference. Here, all Mr. Kita did was request availability in an email. He never tried to call Plaintiff's counsel as he is required to do pursuant to CCP § 439. As a result, counsel for FCA has not substantively met and conferred regarding the issues presented in this motion.

The hearing on the motion for judgment on the pleadings is continued to September 24, 2026, at 8:30 a.m. Moving Defendant is ordered to meet and confer with Plaintiff in person, by telephone or videoconference for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion for judgment on the pleadings. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the subject pleadings. Plaintiff shall provide legal support for her position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the motion for judgment on the pleadings;**
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file amended pleadings before the date set forth above; or**
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion for judgment on the pleadings, and supporting memorandum of points and authorities that the parties were unable to resolve.**

No further briefing is permitted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601598	ALLY CAPITAL CORP vs ALBA	NOTICE OF APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

The hearing on Notice of Application for Writ of Possession-Claim and Delivery is continued to September 22, 2026, at 8:30 a.m., as there is no proof of service of the summons and complaint.

An order to show cause re: sanctions not to exceed \$1,500 or dismissal is set for September 22, 2026, 8:30 a.m. as to Plaintiff Ally Capital Corp, a corporation aka Ally Bank Corp, aka Ally Bank, and as to counsel Jessica E. Flynn, for failure to timely file proof of service of the summons and complaint.